

(3) Any money borrowed otherwise than on Treasury Bills shall be repaid, with interest not exceeding three pounds per cent. per annum, out of the growing produce of the Consolidated Fund, at any period not later than the next succeeding quarter to that in which the money was borrowed.

(4) Any money borrowed under this section shall be placed to the credit of the account of the Exchequer, and shall form part of the said Consolidated Fund, and be available in any manner in which such Fund is available.

(5) The interest on any money borrowed under this section shall be paid out of the permanent annual charge for the National Debt.

4. This Act may be cited as the Consolidated Fund Act, 1954. Short title.

CHAPTER 23

An Act to amend section ten of the Hill Farming Act, 1946, and to provide for the registration of conditions applied to cottages under that section. [26th March, 1954]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) Section ten of the Hill Farming Act, 1946 (which requires regulations to be made by the appropriate Minister for attaching conditions as to the occupation and maintenance of cottages in respect of which improvement grants are made under that Act, as amended by subsequent enactments, and for the recovery of such grants in the event of a breach of those conditions) shall have effect subject to the following provisions of this section.

Amendments
of s. 10 of
Hill Farming
Act, 1946.
9 & 10 Geo. 6.
c. 73.

(2) So much of paragraph (a) of subsection (1) of the said section ten as requires that the conditions to be applied to a cottage by regulations made thereunder shall include a condition prohibiting the occupation of the cottage otherwise than by the owner or a tenant thereof shall cease to have effect; but in relation to a cottage which is for the time being occupied in pursuance of a contract of service by a person who is not a tenant of the cottage, the said conditions shall include a condition corresponding—

(a) in the case of regulations for England and Wales or Northern Ireland, with the condition set out in subsection (4) of section two of the Housing Act, 1952 (which secures the possession of the occupier for four weeks if the contract of service is determined by the employer or by death);

15 & 16 Geo. 6.
& 1 Eliz. 2.
c. 53.

15 & 16 Geo. 6.
& 1 Eliz. 2.
c. 63.

(b) in the case of regulations for Scotland, with the condition set out in subsection (2) of section six of the Housing (Scotland) Act, 1952 (which makes corresponding provision in Scotland).

(3) Regulations made for the purposes of paragraph (b) of the said subsection (1) (which provides for the recovery of sums paid on account of grant in the event of a breach of conditions) shall provide—

(a) for enabling the appropriate Minister to suspend the operation of the regulations in respect of any such breach which appears to that Minister to be capable of being remedied, and to except therefrom any such breach which is remedied to the satisfaction of that Minister within such period as he may allow or which appears to that Minister not to have been due to any act, default or connivance on the part of the person from whom any sums would be recoverable thereunder;

(b) for limiting the amount recoverable under the regulations in the case of any other breach of conditions in respect of a cottage by reference to the extent to which the period for which those conditions were applied to the cottage remains unexpired at the date of the breach.

(4) In any case where sums on account of an improvement grant in respect of a cottage are paid to a person not being the owner of the cottage, regulations made for the purposes of the said paragraph (b) may provide for recovery from that person, or his successors in title, instead of from the owner; and the said paragraph shall have effect as if for the words "payable to him" there were substituted the words "payable on account of the grant".

(5) Regulations made under the said section ten may be made so as to apply (subject to such modifications, if any, as may be specified therein) to cottages in respect of which improvement grants have been made before the date on which the regulations come into force, and shall be so made so far as necessary for giving effect to subsections (2) and (3) of this section.

Registration of
conditions
applied to
cottages under
s. 10 of the
Hill Farming
Act, 1946.

2.—(1) Any conditions applied to a cottage in England or Wales by virtue of regulations made after the passing of this Act under the said section ten shall be registered in the prescribed manner in the register of local land charges by the proper officer of the council of the county borough or county district in which the cottage is situated; and it shall be the duty of the appropriate Minister to notify the proper officer of the council in whose area the cottage is situated of any conditions to be registered under this subsection, and to furnish him with all necessary information relating thereto.

(2) The power conferred by subsection (6) of section fifteen of the Land Charges Act, 1925, to make rules for giving effect to the provisions of that section shall be exercisable for giving effect to the foregoing subsection, and in that subsection the expression "prescribed" means prescribed by rules made in the exercise of that power. 15 & 16 Geo. 5.
c. 22.

(3) Where any conditions apply to a cottage in Scotland by virtue of regulations made as aforesaid the appropriate Minister shall cause to be recorded in the appropriate Register of Sasines a notice in such form as may be prescribed by the said regulations specifying the conditions which by virtue of the said regulations apply to the cottage; and where the aforesaid conditions cease to apply to a cottage the appropriate Minister shall cause to be recorded in the appropriate Register of Sasines a notice in a form prescribed as aforesaid stating that the conditions no longer apply to the cottage.

(4) Any conditions applied to a cottage in Northern Ireland by virtue of regulations made as aforesaid shall be included amongst the matters which are required to be registered in the Statutory Charges Register; and accordingly the following paragraph shall be added to subsection (1) of section two of the Statutory Charges Register Act (Northern Ireland), 1951:—

"(1) Any conditions applied to a cottage by virtue of regulations under section ten of the Hill Farming Act, 1946."

(5) For the purposes of section six of the Government of Ireland Act, 1920 (which relates to the powers of the Parliament of Northern Ireland to make laws) subsection (4) of this section shall be deemed to have been passed before the date appointed for the purposes of the said section six. 10 & 11 Geo. 5.
c. 67.

3.—(1) This Act may be cited as the Hill Farming Act, 1954; and the Hill Farming Act, 1946, the Livestock Rearing Act, 1951, and this Act may be cited together as the Hill Farming and Livestock Rearing Acts, 1946 to 1954. Short title,
citation,
construction
and commence-
ment.

(2) This Act shall be construed as one with section ten of the Hill Farming Act, 1946. 14 & 15 Geo. 6.
c. 18.

(3) This Act shall come into operation at the expiration of a period of two months beginning with the date on which it is passed.

